

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF ARISTOV AND OTHERS v. RUSSIA

(Applications nos. 10697/23 and 32 others –
see appended list)

JUDGMENT

STRASBOURG

16 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Aristov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies, and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO).

V. REMAINING COMPLAINTS

14. The applicant in application no. 34414/23 raised further additional complaints under Article 6 of the Convention. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention in application no. 34414/23;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	10697/23 21/02/2023	**Kim Anatolyevich ARISTOV** 1980		Anti-war protest Moscow 28/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/10/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 28/02/2022 until 01/03/2022	4,000
2.	11475/23 25/02/2023	**Ruslan Igorevich BELYAYEV** 1990		Anti-war protest Moscow 13/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 27/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 13/03/2022 for compiling an offence report	4,000
3.	11478/23 22/02/2023	**Mariya Alekseyevna SMIRNOVA** 2001	Zboroshenko Nikolay Sergeyevich Mytishchi	Anti-war protest Moscow 27/02/2022	article 20.2 § 8 of CAO	fine of RUB 150,000	Moscow City Court 25/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report	5,500
4.	11551/23 27/02/2023	**Darya Sergeyevna KATASONOVA** 1996		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 27/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	11552/23 22/02/2023	**Aleksey Sergeyevich TSVETYNIN** 1988		Anti-war protest Moscow 04/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 25/10/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 04/03/2022 until 05/03/2022	4,000
6.	11754/23 26/02/2023	**Irina Stanislavovna DMITRIYEVSKAYA** 2000		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 27/10/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 24/02/2022 until 25/02/2022	4,000
7.	11853/23 22/02/2023	**Fedor Dmitriyevich RYZHOV** 2003		Anti-war protest Moscow 13/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 31/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 13/03/2022 for compiling an offence report	4,000
8.	12159/23 03/02/2023	**Dmitriy Alekseyevich ARKHIPOV** 1996		Anti-war protest Moscow 02/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 03/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 02/03/2022 for compiling an offence report	4,000
9.	12200/23 25/02/2023	**Olga Sergeyevna ALTER** 1979		Anti-war protest Moscow 01/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/10/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 01/03/2022 for compiling an offence report	4,000

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10.	12314/23 02/03/2023	**Roman Igorevich KISELEV** 1994		Anti-war protest Moscow 02/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 03/11/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 02/03/2022 until 03/03/2022	4,000
11.	12346/23 06/03/2023	**Rodion Arturovich AFANASYEV** 1998		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 01/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
12.	12887/23 07/03/2023	**Yevgeniy Vladimirovich ABAYEV-GILDEBRAND** 1997	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
13.	13228/23 23/03/2023	**Aleksey Vadimovich DEMIDOV** 1992		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 23/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
14.	13239/23 11/03/2023	**Veronika Igorevna KNITEL** 1992		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 11/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report	4,000

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15.	13889/23 10/03/2023	**Svyatoslav Maksimovich SINEV** 1995		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 15/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
16.	14364/23 15/03/2023	**Yan Alekseyevich KALASHNIKOV** 1994		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 17/11/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 24/02/2022 until 25/02/2022	4,000
17.	14612/23 04/03/2023	**Gleb Vladislavovich OVSYANNIKOV** 1978		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 09/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
18.	14617/23 10/03/2023	**Olga Andreyevna SAKHAPOVA** 1993		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 11/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
19.	14980/23 22/03/2023	**Nikolay Petrovich KOLPASHNIKOV** 1957		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/11/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 27/02/2022 until 28/02/2022	4,000

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20.	15578/23 07/03/2023	**Andrey Sergeyevich PETUSHKOV** 2003		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 07/11/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 24/02/2022 for compiling an offence report	4,000
21.	16191/23 07/04/2023	**Akeksandr Sergeyevich KUDASHEV** 1982		Anti-war protest Samara 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 07/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report	4,000
22.	17396/23 11/04/2023	**Fedor Mikhaylovich GUROV** 1999		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report	4,000
23.	23502/23 23/05/2023	**Yana Andreyevna VARKHOLEVA** 1990		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 09/02/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
24.	23504/23 23/05/2023	**Yekaterina Aleksandrovna ORLOVA** 2002		Anti-war protest Moscow 28/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/02/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 28/02/2022 for compiling an offence report	4,000

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25.	23787/23 17/05/2023	**Anna Dmitriyevna MELCHUKOVA** 1995		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 25/01/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
26.	24808/23 18/04/2023	**Anastasiya Alekseyevna BELYANINA** 2002	Arshinova Valeriya Aleksandrovna Moscow	Anti-war protest Moscow 28/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 28/02/2022 for compiling an offence report	4,000
27.	24812/23 18/04/2023	**Anastasiya Vasilyevna SHENTALINSKAYA** 1972	Arshinova Valeriya Aleksandrovna Moscow	Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 24/02/2022 for compiling an offence report	4,000
28.	25281/23 13/06/2023	**Aleksey Konstantinovich MIGAY** 1974		Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/02/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 03/03/2022 until 04/03/2022	4,000
29.	31419/23 13/07/2023	**Mari LOVSKI** 1998		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/03/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 27/02/2022 until 28/02/2022	4,000

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30.	31599/23 20/07/2023	**Tatyana Petrovna LVOVSKAYA** 1987		Anti-war protest Moscow 25/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/03/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 25/02/2022 until 26/02/2022	4,000
31.	34414/23 22/09/2021	**Nikita Viktorovich GALKIN** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
32.	35123/23 04/07/2023	**Aleksandr Aleksandrovich KOLOBOV** 1996		Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 09/03/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 03/03/2022 for compiling an offence report	4,000
33.	35125/23 01/07/2023	**Mikhail Andreyevich SOKOLOV** 1998		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 01/03/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 27/02/2022 until 28/02/2022	4,000

[1] Plus any tax that may be chargeable to the applicants.